

**Draft for exact-file review**

Proposed language. Accepted source facts retain their original status. No execution, filing, payment or clearance is established by this edition.

Sable Harbor Advisory counsel instruction, search record and launch decision form

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This is a proposed synthetic instrument for exact-content review. It has not been signed, adopted, delivered to a counterparty or made effective. Existing accepted facts cited below remain controlling; new clauses are proposed terms, not retrospective evidence.

1. Instruction and protected decision boundary

Enterprise Legal instructs a future retained qualified trademark adviser, once engagement is approved, to evaluate proposed real external use of the composite name **Sable Harbor Advisory** for the actual goods, services and markets specified in Schedule A. This is the proposed instruction text; no adviser has been appointed and no search has been performed under this document.

The accepted internal operating name remains Sable Harbor Advisory. The assignment is not to reopen that business-line identity or redesign its approved artwork as an administrative exercise. It is to determine what evidence, advice and decisions would be needed for external commercialization. A recommendation affecting external use must distinguish its legal/search basis from any proposed editorial canon change.

The current accepted status note records that external clearance, registrability, likelihood of confusion, filing and international clearance are not established. It preserves the preliminary screen's observation about the descriptive/weak standalone word Advisory without treating that observation as a full clearance opinion. The existing preliminary screen remains prior research, not a completed response to this instruction.

2. Scope of professional engagement

The proposed engagement shall cover the exact composite wording, the relationship to the house mark, intended presentation forms, relevant goods/services, actual target markets and channels, and the stage of use contemplated. Counsel shall identify the search scope appropriate to those facts and any significant exclusions before starting paid work. A broad label such as consulting shall not be treated as a complete statement of the intended business.

The client shall supply existing approved word/graphic references without altering their bytes. The adviser may discuss the legal implications of a presentation form but shall not create or approve replacement artwork under this engagement. Any later redesign shall require its own user review. A domain or social-handle search shall be reported as such, not described as a trademark clearance determination.

The engagement proposal shall identify adviser legal identity, responsible professional, jurisdictions covered, deliverables, fee basis, permitted third-party search costs and expected delivery date. Those fields remain unfilled. No law firm, budget or fee is invented in this public draft. Appointment and expenditure require the existing procurement/delegation route; this instruction does not create authority to engage counsel or incur fees by itself.

3. Schedule A — client use instructions

Field	Instruction supplied	Completion required
Composite wording	Sable Harbor Advisory	Preserve exact spelling and house-mark relationship
Internal operating-name status	Accepted	Do not label identity as undecided
Proposed external goods/services	Consulting, software, analytics, technology and industrial-service scope require actual selection	Business owner describes offered work, not every possible future service
Geography	No real launch market is selected by this draft	Identify intended jurisdictions and sequencing
Customers/channels	Not supplied	Identify customer types, sales channels, website/domain use and presentation
Proposed first-use date	Unestablished	Supply actual planned launch date; no backdating
Artwork	Existing approved asset reference, to be identified in engagement annex	Preserve source path/hash; no new design adoption
Applicant/owner	Unestablished for any filing	Confirm legal entity and authority separately from business-line name

The client response shall distinguish existing use from planned use and avoid substituting internal repository publication dates for external commercial use. Any specimen or example supplied to counsel shall state whether it is a mock-up. The public repository shall not contain privileged advice or private client/customer information merely because the surrounding case is synthetic.

4. Search specification and record

Counsel's accepted search specification shall identify the sources, jurisdictions, queried wording/variants, relevant goods/services, temporal cutoff and material limitations. It shall distinguish federal and state records, common-law/marketplace evidence, domains/social identifiers and relevant non-U.S. sources where included. The search scope must respond to actual intended use rather than assume that one database covers every issue.

The following record is a fillable worksheet for future results, not a fabricated search certificate:

Search record ID	Source and jurisdiction	Query / goods or services	Search time and cutoff	Result reference	Reviewer assessment
ADV-SEARCH-001	NOT PERFORMED	Scope to be agreed	UNESTABLISHED	No result supplied	Not assessed
ADV-SEARCH-002	NOT PERFORMED	Scope to be agreed	UNESTABLISHED	No result supplied	Not assessed
ADV-SEARCH-003	NOT PERFORMED	Scope to be agreed	UNESTABLISHED	No result supplied	Not assessed

For each relevant result, the adviser shall retain the source record identifier, observed status, wording, owner as stated by the source, goods/services, jurisdiction and retrieval date. A result's existence is not itself a conclusion about conflict. A search returning no relevant result shall state the query and limits; it shall not be converted into an unlimited statement that the name is available worldwide.

The business owner shall be able to distinguish what was searched from what was assessed. Screenshots, extracts and explanatory notes shall be linked to their source and version. A later database update shall not silently replace the record on which the earlier recommendation was based. Supplemental searches shall be labelled with their later cutoff and scope.

5. Requested advice and deliverable

The requested advice shall address the proposed use as actually described, the full composite mark and house-mark relationship, significant findings, remaining uncertainties, available responses and any recommended further search or filing strategy. It shall distinguish a search report from a reasoned clearance recommendation and from the separate outcome of any application.

Where counsel recommends a narrower goods/services statement, geographical limitation, changed presentation or delayed launch, the deliverable shall state the concrete change and its rationale. It shall not use a generic approval stamp that hides conditions. The advice shall identify material assumptions supplied by the business and the consequence if they change.

No likelihood-of-confusion analysis, registrability conclusion or legal opinion is supplied by this draft. The listed deliverables are instructions to obtain advice, not a substitute for it. The proposed process may yield a recommendation to proceed, proceed with conditions, obtain more evidence, or refrain from the proposed external use. None is selected here.

6. Proposed launch decision instrument

After receiving the agreed advice, the authorized business and Legal decision-makers shall record the specific proposed external use, the advice version considered, conditions, excluded uses and remaining actions. A decision to proceed shall be confined to that stated scope. It shall not imply registration or convert preliminary research into an external certificate.

Decision entry	Present state	Required completion
Advice received	No advice supplied under this instruction	Adviser, date, report reference and scope
External use decision	UNDECIDED	Proceed / conditional / defer / decline, with reason
Conditions	Not yet determined	Concrete restriction, responsible role and completion evidence
Filing decision	UNDECIDED	Filing scope, applicant, budget and authority if selected
Graphic changes	None authorized	Separate exact-file review if any change is proposed
Internal operating name	Sable Harbor Advisory remains accepted	Change only through a separate accepted canon decision
Authorized sign-off	Not signed	Business and Legal roles, names, dates and authority record

The decision-maker shall not resolve an adverse or uncertain finding by deleting it from the search record. If a business recommendation differs from the adviser's recommendation, the divergence and authorized decision basis shall remain explicit. This draft creates no exception to the existing governance or legal review requirements.

7. Filing and later status records

If a filing is separately authorized, its record shall distinguish preparation, submission, acknowledgment, examination, registration, refusal, withdrawal and other actual reported states. An internal decision to file is not submission; an application is not a registration. The exact external evidence must support the state recorded. This form creates no application number, filing date, registration number, seal or government acknowledgment.

Any accepted use condition shall be carried into the relevant launch instructions. A later change in markets, goods/services, legal owner or presentation shall trigger a scoped review rather than relying indefinitely on advice for a different use. Periodic monitoring, if commissioned, shall have its own source and cost scope.

For repository delivery, the public status note may record the existence, scope and disposition of a completed review without publishing confidential advice. A synthetic exercise version must remain visibly synthetic and must not impersonate a real law firm's work. The existing status note remains controlling until an accepted successor identifies the exact external execution fact that changed.

8. Present disposition

This packet supplies a complete proposed instruction and practical search/decision record. It supplies no new search result, clear mark, legal owner for filing or external launch permission. The immediate next action is to define actual intended external use and appoint qualified counsel if real commercialization is pursued. If the universe remains an internal synthetic case, the accepted business-line name can continue in that role without inventing a clearance event merely to make the archive look complete.

Source documents

- docs/legal/ADVISORY_NAME_AND_EXTERNAL_CLEARANCE_STATUS_2026-09-09.md
- docs/legal/PRELIMINARY_NAME_AND_MARK_SCREEN.md